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Granollers, 16 September 2026

Dear Sirs,

We do appreciate your interest in our table top unit for filling and our table top machine for automatic closing. We are pleased to enclose our proposal along with the technical details, as per your specifications:

TABLETOP PERISTALTIC PUMP MODEL SX-50 SpeedFill
TABLETOP MACHINE FOR AUTOMATIC CLOSING OF VIALS MODEL SX-140-C

Operations for SX-50 SpeedFill

- Filling unit through a dosing pump, model SX-50 *SpeedFill* with with double peristaltic head.
- Peristaltic dosing station propelled through a powerful servomotor.

Operations for SX-140-C

- Manual infeed of vials, directly to the star wheel.
- Closures previously placed onto the vials.
- Manual activation of the process through bi-manual safety buttons.
- Pneumatic closing station, through a crimping head.

Containers and closures

- Vial (2 formats, no samples).
- Aluminium cap (1 format, no samples).


Product

- Pharmaceutical product (no samples).
- Viscosity ____ cps. (to be determined by the customer).

Production Speed

- **For SX-50 SpeedFill:** depending on the filling volume, operator's ability and the characteristics of the product.
- **For SX-140-C:** up to **1.000/1.500 uph.**

Estimated speed on water product (H₂O). For your product, the speed depends on the number of nozzles, dosing volumes, characteristics of the product (foamy, viscosity, density, etc.).

MAXIMUM PRODUCTION SPEED SUBJECT TO BE TESTED ON CUSTOMER'S PRODUCT AND CONTAINERS FORMATS.



Pict. 1. General view of model SX-50 SpeedFill. Final configuration may differ.

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1. TABLETOP EQUIPMENT FOR FILLING

MODEL: SX-50 SpeedFill

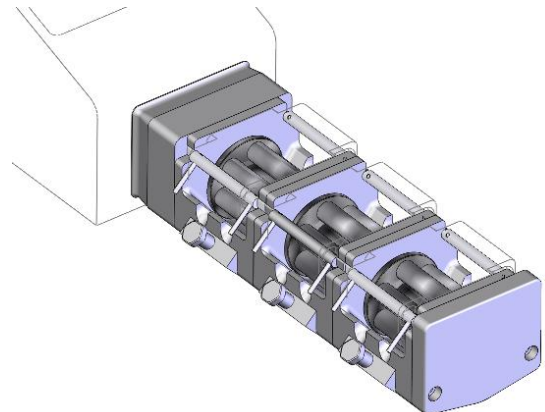
1.1 GENERAL DESCRIPTION OF THE UNIT

- Aseptic filling, no cross contamination.
- Filling from 0.5 ÷ 500 ml.
- Dosing Accuracy +/- 1% => Single Head Peristaltic Pump accuracy of +/- 1% (Note: Accuracy of multiple Head Pumps, accuracy could vary).
- Filling volume and anti-drop function can be programmed from the control panel.
- Different configurations of dosing, dose volume, dose speed, etc. can be saved from the control panel.
- Standard power and control electronics.
- Conforms with cGMP-US FDA.
- [Material certificate 2.1 for peristaltic heads in AISI 316-L.](#)
- [Revised datasheet stating 0.1-1,050 ml range and accuracy ±0.5% aqueous / ±1% general.](#)



Pict. 2. Detail view of model SX-50 SpeedFill. Final configuration may differ.

- Peristaltic filling has become, in a short time, the favourite system for pharmaceutical industry. It offers sterility, flexibility and it is easily cleaned, thanks to the fact that the fluid is in contact only with the inside of the tube and the dosing needle.
- It has been designed for its use in sterile area and it complies with cGMP and US-FDA regulations, in special compliance with the requirements of the pharmaceutical industry.
- SX-50 is propelled through a powerful servomotor, capable of accepting up to 3 heads in series. The body of the head is a single piece, built in one piece for better asepsis.
- The peristaltic head pumps the fluids in a smooth and progressive way, without closing its molecular chain. It is excellent for the dosing of suspended solids, vaccines, cellular tissue and other sensitive fluids.
- The equipment is built with the best standard components in the market. Therefore, elements such as servomotor, gear, touch screen or control PLC are easy to replace in any geographical area, which makes its maintenance simple and fast.
- “Platinum Cured Silicone” tubes are manufactured in a septic room and they are easy to sterilize through autoclave or through gamma rays radiation.
- Range of tubes: Ø Int.: 0,5 / 0,8 / 1,6 / 3,2 / 4,8 / 6,4 / 8 / 9,6 mm.
- Tube thickness: 2,4 mm.
- Tubing is not included in the final price.
- Recommendable Watson Marlow standards tubing.
- All production parameters are stored in the system memory and parameters such as:
 - Dosing volume
 - Kinematics of the filling process, individual control of acceleration and deceleration ramp.
 - Interval of time between dosing.
 - Calibration parameters.
 - Drop less function.
 - Production speed.
- They are automatically regulated and associated to each dosing program. The machine can store up to 200 programs of different production batches.
- The design of the machine allows it to work independently or to be part of an industrial filling machine, fully automatic.



1.2 SUPPORT AND DOSING NOZZLE

- Special dosing support with centering of vials.



Pict. 3. Detail of support and dosing nozzle. Final configuration may differ.

1.3 SECURITY AND ELECTRICAL BOX

- Control panel integrated in the chassis of the machine.
- Power supply of 24VCC.
- Voltage 110-230VAC+T– 50/60Hz
- Elements of power Allen Bradley.
- Communication through Allen Bradley touch-screen.
- Batch reports in PDF downloadable for 21 CFR Part 11 compliance.
- CE Mark.
- Design and manufacture of the machine according GMP Standards.
- Technical documentation included:
 - Technical documentation of installation, running and maintenance in English.
 - Electrical diagrams (2 copies).



2. TABLETOP MACHINE FOR AUTOMATIC CLOSING OF CONTAINERS

MODEL SX-140-C

2.1 GENERAL DESCRIPTION OF THE EQUIPMENT

- Machine frame cladding made in AISI-304 stainless steel.
- Supports and columns made of AISI-304 Stainless Steel and anodized duraluminum.
- The design and surface finish of all parts allow easy cleaning and care.
- Working speed is variable through pneumatic activation.
- Acoustic level: $L_{eq} < 80 \text{ dB (A)}$.
- Circular motion, through 1 set of star wheels for 1 format of container, made of POM.
- Changeover to a different format is easy and quick and does not require tools.



Pict. 4. General view of SX-140-C. Final configuration may differ.

2.2 PNEUMATIC CLOSING STATION

- Closing station for alu caps through a pneumatic crimping head.
- Minimum generation of particles during the closing process.
- Pneumatic vertical haul of the closing station.
- Festo pneumatics, 6 bar clean air pressure is required.
- Activation of the mechanism through bi-manual safety buttons.



2.3 SECURITY AND ELECTRICAL BOX

- Ingress protection: IP-31.
- Voltage 120-230v – 50/60Hz
- CE mark.
- Design and construction of the machine as per GMP Standards.
- Technical documentation included:
 - Technical dossier of installation, operation and maintenance in English.
 - Electrical diagrams in 2 copies.

3. SERVICES

3.1 IQ / OQ (INSTALLATION QUALIFICATION/OPERATIONAL QUALIFICATION) DOCUMENTATION

- This section describes the IQ / OQ qualification documentation of the machines:



Pict. 5. Validation Documentation.

- Installation Qualification (IQ)** this is the documented evidence that the machine has been installed according to the User Requirements (URS) and/or the Design Specifications defined in the offer/order. These tests are carried out without running the machine.
- This qualification stage should be done at the customer's facilities **(the IQ execution is not included in this section; it must be required separately. This part only includes the protocol delivery)**.
- This is an indicative list of the tests included in this qualification stage (IQ) are¹:

Documentation Verification Test (As Built)
Conformity of drawings (As Built)
Conformity of components
Materials certification according to ASME/BPE 2.1
Touch Screen installation verification.
PLC Installation verification
Utilities verification test

- Operational Qualification (OQ)** this is the documented evidence that operation of the machine complies with the User Requirements (URS) and/or the Design Specifications defined in the offer/order.

¹ Note: This list is not to be considered as binding. If any of the items listed are not quoted, the test will not be carried out.

- This qualification stage should be done at the customer's facilities (the OQ execution is not included in this section, it must be required separately. This part only includes the protocol delivery).
- This is an indicative list of the tests included in this qualification stage (OQ) are²:

Verification of start-up and shutdown of the equipment
Safety Systems and function verification
Access levels test
Alarms and interlocks
Screens verification
Recipes Management
Operational test for each format
Dosing capacity test (<i>Only filling machines</i>)
Washing capacity test (<i>Only washing machines</i>)
Filter integrity test (<i>Only depyrogenation tunnels and laminar flow devices</i>)
Air speed test (<i>Only depyrogenation tunnels and laminar flow devices</i>)
Particle counting test – “at rest” and “at work” (<i>Only depyrogenation tunnels and laminar flow devices</i>)
Temperature homogeneity (<i>Only depyrogenation tunnels</i>)
Depyrogenation and cooling test for each format (<i>Only depyrogenation tunnels</i>)
Smoke test (Air Flow Patterns) (<i>Only for laminar flow devices</i>)

- **The IQ/OQ execution by DARA specialized personnel has to be ordered separately (it is not included in this validation package). If selected, tests performed during FAT related to parts of the equipment that do not suffer any modification during Transport and Installation, will be leveraged and traced to the FAT documents.**

² Note: This list is not to be considered as binding. If any of the items listed are not quoted, the test will not be carried out.

4. SCOPE OF PRICES

Pos.	Proposal	Q	Unit Price	Price
1	Tabletop peristaltic pump, model SX-50 SpeedFill. <i>Support and dosing nozzle included.</i> - Filling unit through a dosing pump, model SX-50 SpeedFill with double peristaltic head. - Peristaltic dosing station propelled through a powerful servomotor.	2	11.550 €	23.100 €
1.1	15 m box of 3,2 mm diameter silicone tubing.	1	300 €	300 €
1.2	Double Y 3,2 mm silicone tubing.	4	80 €	320 €
1.3	15 m box of 6.4 mm diameter silicone tubing.	1	500 €	500 €
1.4	Double Y 6,4 mm silicone tubing.	4	100 €	400 €
1.5	15 m box of 8 mm diameter silicone tubing.	1	600 €	600 €
1.6	Double Y 8 mm silicone tubing.	4	100 €	400 €
2	Tabletop machine for automatic closing of vials, model SX-140-C. - Manual infeed of vials, directly to the star wheel. - Closures previously placed onto the vials. - Manual activation of the process through bi-manual safety buttons. - Pneumatic closing station, through a crimping head. Machine prepared for: - 1 format of 5 ml vial. - 1 format of alu cap.	2	19.300 €	38.600 €
2.1	Changeover parts for additional format of vial.	1	900 €	900 €
Total FCA Dara Factory, Granollers, Spain			65.120 €	

Note: This is a budgetary quote without client's specifications. Final price may differ about +/- 20%.

Pos.	Services	Price
S1	Training at DARA facilities before shipment. Travel and accommodation expenses for client not included.	Included
S2	Installation, start up and training executed by Dara Technician/s for line during 1 day. Travel and accommodation expenses included.	7.840 €
S3	IQ/OQ Validation documentation.	3.200 €
S4	Crates and packaging.	1.070 €
S5	CIP Air Freight Shipment) to Maputo, Mozambique (Incoterms 2020). <i>Note: See General Conditions of Sales</i>	4.130 €
NOTE: The final amount of the offered services will vary according to the final machine configuration and selected optional items. In case of not requirement of S1, a training course could be offered at the client's facilities by our After-Sales-Service Department.		

4.1 SUMMARY

A. Sub-Total equipments.	65.120 €
B. Sub-Total Services	16.240 €
Total FCA Dara Factory, Granollers, Spain, INCOTERMS 2020	81.360 €

5. SALES TERMS

SALES TERMS	
Delivery time:	Project leadtime is 3-4 months to readiness for FAT. Start of project date must be confirmed once the signed order confirmation, advanced payment and samples/technical drawings from the project are received.
Samples	The samples quantity corresponds to a 90-minute run for each closure format automatically fed (droppers, insert, spray pump, capsule, lid...). These samples will be used to design and build feeders. Later, more samples for adjustments and FAT will be required. One week after having received the PO, Dara will confirm the required quantity of the second samples, which must be delivered no later than 60 days after the receipt of the PO, in order not to affect the delivery time of the equipment.
Prices:	Net prices in Euros.
Payment terms:	▪ 40% downpayment against pro-forma invoice. 60% Payment by Confirmed and Irrevocable L/C opened with purchase order including below payment terms: ▪ 50% Before Shipment. ▪ 10% after installation certificate or 30 days from shipment whichever occurs first. <i>*Final Payment terms will be negotiated prior order confirmation.</i>
General terms and conditions:	Price includes: ○ Price for the unit and accessories in FCA DARA Factory conditions (Incoterms 2020). Insurance is excluded. ○ A full technical dossier of installation in English, operations, and maintenance. ○ Mechanical and implantation drawings. Price does not include: ○ Transport, unloading and transfer to the final destination of the unit. ○ In general, any civil and auxiliary work required before the installation of the unit. ○ As well as whatever not specified in our proposal.
Warranty:	See General Conditions of Sales
Validity of the offer:	4 weeks

6. GENERAL CONDITIONS OF SALES

6.1 APPLICATION

- 6.1.1 This document constitutes the general sales terms and conditions for machinery and equipment (hereinafter “**CGV**”) of the company “MAQUINARIA INDUSTRIAL DARA S.L.” (“**Dara**”), constituted under the Laws of Spain, provided with Tax Identification Number B-61293577, domiciled in Galileu Galilei street, No. 5-19 08403, Granollers (Spain) (“**Dara Plant**”), and registered in the Commercial Registry of Barcelona, Volume 29.607, Folio 107, and Sheet B-156938.
- 6.1.2 These CGV will be incorporated into and will form an integral part of any offer and/or commercial document by which Dara intends to arrange the sale of Machinery (“**the Offer**”) and any confirmation of the sale (“**Order Confirmation**”) by a client (hereinafter Dara and the “Client” will be referred to as “**the Parties**”). Any repeal or modification of these CGV must be expressly accepted in writing by a legal representative of Dara in a separate document that refers to an Offer, Order or Contract.
- 6.1.3 Dara categorically rejects the possibility of being bound by any General Conditions for Purchasing (“**CGC**”) of their Clients, whether these have been notified or placed at the disposal of Dara or not. That is to say, in the case of a possible contradiction between these CGV and other CGC, Dara will not be bound to the CGC under any circumstance.
- 6.1.4 These CGV will be understood as accepted by the Client when any of the following circumstances concur:
- (i) After the Client has issue a purchase order based on the Offer sent by Dara, or
 - (ii) The collection by Dara of the advance payment or any other amount that, according to the Offer, must be made before beginning manufacturing, or
 - (iii) The delivery by the Client of any material necessary or convenient for manufacturing the Machinery.
- 6.1.5 The terms “Equipment”, “Machine”, or “Machinery”, and its integral parts will have the meaning established in Directive 2006/42/CE of the Parliament and Council of Europe, and Dara undertakes to manufacture and produce these following applicable technical and safety criteria. Unless specified otherwise in the EC certificate of conformity or the user’s manual, Dara’s Machinery and Equipment is not designed, manufactured, or produced in compliance with any other regulation or Directive. It is the client’s obligation to comply with the provisions of any other Directive. In particular, unless specifically quoted, the Equipment is not suitable to process products which generate explosive atmospheres and therefore it is not warranted the risk of ignition and possible damages arisen in relation with that. Its transposing regulations, as well as any others imposed on the products to be used in the Machinery and/or Equipment and/or its location. In particular, non-compliance said provisions will exempt Dara from any liability in this respect and entitles Dara to stop or cancel the production, reserving the right to claim damages caused.
- 6.1.6 Any Offer sent by Dara to a Client will be valid for thirty (30) calendar days from the date it is sent, except if during the said period a modification or new version of the Offer were to be sent, in which case it will replace the former for all intents and purposes. After the passing of this period, the offer will cease to have effect and can be replaced at the discretion of Dara.

6.2 PRICE AND PAYMENT CONDITIONS

- 6.2.1 Dara undertakes to manufacture and produce Machinery and Equipment according to the specifications and payment conditions specified in the Offer, and the Client is committed to paying the amounts stipulated in the same, under the conditions of delivery, transfer of risk, shipping, insurance, and any others applicable to FCA Dara Plant (Galileu Galilei street, No. 5-19 08403 in Granollers, Spain) (Incoterms 2020) (“**the Price**”). The Price never includes Value Added Tax (“**VAT**”), which must be added according to the current rate valid; no other tax, fee or direct or indirect levy related to the sale of Machinery and Equipment is included. Neither does the price include new requirements, services or specifications requested by the Client once manufacturing has commenced. These must be included in an additional Offer and expressly accepted by Dara.

- 6.2.2 The payment of the Price will be carried out according to the payment conditions indicated in the Offer. The collection of any advanced payment indicated in the Offer will be a condition -together with any others as detailed in Clause No. 3- for triggering Dara's manufacturing and/or production obligations.
- 6.2.3 The Client's non-compliance with payment obligations will accrue in favor of Dara, from the due date of the corresponding invoices, interest on arrears of eight (8) percentage points, except if legislation regarding interest on arrears for commercial transactions indicates otherwise. Above stipulation is without prejudice of Dara's right to interrupt and/or suspend their manufacturing and/or production obligations or claim for damages Dara may be entitled to.
- 6.2.4 If the Parties were to agree that the Price should be paid through a letter of credit or documentary credit, the Buyer undertakes to obtain this in compliance with the "Uniform Customs and Practices for Documentary Credits No. 600/2007" published by the International Chamber of Commerce and its subsequent modifications. The irrevocable letter of credit will be delivered to Dara together with the submission of the documents that are part of any order.

6.3 MANUFACTURING AND PRODUCTION

- 6.3.1 Dara will commence manufacturing and/or production of the work when the following concur: (i) Prior acceptance of the Offer in question, (ii) by the reception of an order from the Client that does not modify or contradict any element of the Offer, and always and in any case prior signing the Offer, these CGV, or the "ad hoc" Contract or Agreement, if applicable, (iii) the collection of any advanced payment and (iv) the reception of samples and/or any other material necessary for manufacturing and/or production. The Client will supply the number of samples requested by Dara and necessary for compliance with each milestone of the project: Design, production, adjustments, and tests, within the indicated deadlines. Compliance with this obligation is considered essential for successfully completing the project. Non-compliance will entitle Dara to inform how this will affect the agreed production deadlines.
- 6.3.2 The cost of managing the shipment and destruction of samples, whether containers or products (liquids, powders, etc.) will, in any case, be the sole responsibility of the Client.
- 6.3.3 Once commenced the manufacturing process, the Client were to introduce new technical requirements or specifications or enlarge those agreed, any reference to delivery deadlines by Dara will be considered as automatically cancelled and shall be replaced by others ones adapted to the new requirements, provided that Dara has accepted them and the Client has accepted the Offer or quotation established for these new technical requirements or specifications according to the provisions of clause 6.2.1 of these CGV.
- 6.3.4 Re-taking of production will not occur until the new planning schedule proposed has been accepted by the Client.
- 6.3.5 Dara reserves the right to modify or replace components of the Equipment if necessary for the successful completion of the project. The Client will be informed of these replacements, and if they entail a cost increase, the corresponding Offer will be issued.
- 6.3.6 Dara reserves the right to subcontract all or part of manufacturing process, as well as the services provided for the Machinery and Equipment. In any case, Dara will respond for these actions, and they will maintain the same quality and compliance standards as those offered by Dara.

6.4 ACCEPTANCE OF THE EQUIPMENT

- 6.4.1 Dara will remain the owner of the Machinery and Equipment sold until full payment of the Price plus any interest or expenses that may have arisen due to delayed payment if any. In case of a Client's delay or a breach in the payment obligations for thirty (30) or more calendar days, Dara may regain possession and remove the Equipment from its location five (5) calendar days after a formal request for payment has been issued and gone unheeded. For this purpose, the Client will be obliged to insure, at their expense, 110% of the Price of the Machinery or Equipment from the moment they receive it until the total Price has been paid to Dara. Repossession will not adversely affect Dara's other rights with regard to the Client.
- 6.4.2 Therefore, until total payment of the Price, the Client undertakes not to dispose of, encumber or relinquish the Machinery in any way.

- 6.4.3 In case of filing for suspension of payments, bankruptcy, declaration of insolvency or seizure of all or part of the Client's assets before having paid the Price in full, the Client must immediately notify Dara and is obliged to place the Equipment at Dara's disposal immediately. Any expenses related to the recovery will be payable by the Client.
- 6.4.4 The reservation of title does not imply that Dara assumes the risks of loss or damage of the Machinery and Equipment, which will be the Client's responsibility in compliance with Incoterm 2020 FCA Dara Plant.

6.5 ACCEPTANCE OF THE EQUIPMENT

- 6.5.1 The Equipment will be supplied by Dara after testing and/or trials as indicated in the corresponding Offer. Dara will provide the necessary documents to carry out and approve said tests.
- 6.5.2 The "Factory Acceptance Test" ("**FAT**") consists of verification, at Dara's plant -in the presence of the Client's technicians or by online means- that the Machinery or Equipment operates according to the requirements and specifications it was designed for, in compliance with the provisions of the Offer. Dara will inform the Client of the date on which the Machinery is ready to carry out the FAT and will draw up and send the documents regarding this test to the Client. Approval of the FAT will be subject to the Parties' approval and/or signing of the documents. The Client must have informed Dara the instructions or materials for carrying out the FAT at least sixty (60) calendar days in advance.
- 6.5.3 Approval of the FAT implies acceptance of the Equipment or Machinery. If the Client were to delay the acceptance and signing of the FAT documents for over seven (7) calendar days from the moment Dara requests them to do so, this will be understood as tacit approval of the Equipment for all intents and purposes. The conclusion of the installation and subsequent commissioning will not affect said acceptance, as the FAT is a test to determine the aptitude of the Equipment. After installation and commissioning, the Parties will sign the handover certificate ("IAC Certificate", "Handover certificate", or similar). If the Client were to request delivery of the Equipment despite non-approval of the FAT, or if it is approved with deviations regarding optimum results, the Client will waive any action, penalty, or sanction that as a result of non-approval of the FAT could be applicable. In case of non-approval of the FAT, Dara undertakes to carry out all the work deemed necessary for approval, which will be verified in as many subsequent FAT as were required, but the corrective work required will always be at the discretion of Dara.
- 6.5.4 If the Client were not to participate in the tests without justifying their absence, the Equipment will be considered accepted by the Client. Dara reserves the right to penalize the Client for the space occupied by their Machinery and Equipment in Dara's installations after a grace period of two (2) weeks has passed since the notification by Dara of their availability to carry out the FAT.
- 6.5.5 As well as the FAT, Dara may provide additional services after the installation and commissioning of the Equipment related to installation and operation, "Installation and/or Operational Qualification" ("**IQ/OQ**") and "Site Acceptance test" ("**SAT**"), which will be carried out on Client's installations. These tests will not affect the acceptance of the Equipment, which will be determined by the effective approval of the FAT. The Client must specifically hire these services if Dara did not include them in their Offer. Dara will draw up and send the documents regarding said tests to the Client. Approval of the "IQ/OQ" and/or the "SAT" will be subject to the Parties' approval and/or signing of said documents.
- 6.5.6 The parameters and conditions determining approval of any applicable test must be objective and measurable, be specified in the protocols that record such tests and ultimately, their acceptance must not be unjustifiably delayed by the Client.
- 6.5.7 With regard to the tests included in point 6.5.5 above, it will be the Client's responsibility to comply with the safety conditions required by European Union Directives or any other if applicable, and have all the material resources needed for the installation and commissioning of the Equipment ready before the execution of the installation and commissioning work, including sufficient space to carry out the work, electricity and internet supplies. Non-compliance with these obligations will entitle Dara not to provide the services at that moment and postpone them until the Client has accredited that they can be performed.

- 6.5.8 Any test on the Equipment will be carried out with the number of technicians and during the days indicated in the corresponding Offer, which will be considered sufficient to comply with the installation and commissioning obligations assumed. Any modification and extension of working days will be quoted by Dara and accepted by the Client.

6.6 EQUIPMENT DELIVERY

- 6.6.1 Dara places the Machinery and Equipment at Client's disposal in FCA Dara Plant conditions (Incoterms 2020). All expenses arising from loading, transporting, insurance and customs clearance of the Equipment to reach the Client's installations will be at the expense and responsibility of the Client under said Incoterm 2020.
- 6.6.2 In the event that the final Incoterm agreed with the Client requires shipment by Dara, the price stated in this offer is an estimate. The exact cost will be confirmed before shipment.
- 6.6.3 Compliance with the delivery deadlines and any other obligation assumed by Dara will be conditioned by compliance with the following circumstances.
- (i) The non-request on the Client's part of any new technical requirements and/or specifications after the purchase order has been accepted.
 - (ii) The Client's submission of samples and materials and any other element required for the manufacturing of the Machinery and/or Equipment, which either before manufacturing or after, are necessary for the design and development of the engineering of the Machinery and/or Equipment.
 - (iii) Approval of the documents that lead to the finalization of the engineering phase within seven (7) calendar days of its request by Dara, that is to say, approval of the designs ("layouts") of the Machinery and/or Equipment in the agreed formats.
 - (iv) The Client's compliance with payment obligations.
 - (v) The Client's compliance with acceptance of Machinery and Equipment requirements.
- 6.6.4 Dara may require the Client to accredit that it has the mandatory import licenses or any documentation regarding the entry of the Equipment in the destination country.

6.7 WARRANTIES

- 6.7.1 Dara will warrant the correct operation of the Equipment at an annual rate of 1,900 effective hours of work at maximum. This warranty will last for 12 months from the date of installation and commissioning of the Equipment or 14 months after the approval of the FAT in Dara's installations, whichever comes earlier. If the Client were to delay the approval of any applicable tests unjustifiably, after seven (7) calendar days from the date the protocols or documents should have been signed, Dara reserves the right to activate the warranty period. Dara will not offer any warranty provision unless a competent technician appointed by Dara has carried out the installation and commissioning.
- 6.7.2 These warranties include replacing faulty parts and components. Dara will have to accept the existence or not of a manufacturing fault, notwithstanding the Client's right to contradict this decision through an expert's report made by an impartial third party. Parts replaced during the validity of the warranty will be delivered according to FCA Dara Plant conditions (Incoterms 2020). The Client is obliged to notify Dara of any defect or fault in the operation of the Equipment as soon as it was detected.
- 6.7.3 These warranties do not include additional services, replacement of parts worn due to normal wear and tear of the Equipment, sending of consumables, components or parts manufactured by third parties, for which the warranties will be the ones provided by said third party. Electrical or electronic components are not included either. The warranty does not include any possible travel expenses, allowances, and accommodation of Dara personnel to install faulty parts or perform remediation works of the Equipment if this is required.
- 6.7.4 In the cases below, Dara will not be obliged to provide the warranties described in previous sections:
- (i) If the Client or a third party has modified, used, or installed total or partially any element of the Equipment or uninstalled existing components without authorization by Dara in writing.
 - (ii) When the work conditions and maintenance parameters of the Equipment are not as established by Dara in the Equipment's Instruction Manual.

- (iii) When the Client or a third party uses the Equipment for a different purpose than specified in the Contract.
- (iv) When the Client is not complying with the obligations assumed under this Contract.

6.8 LIMITATION OF LIABILITY

- 6.8.1 Dara will not accept any penalty or deduction in the Price due to delay in any of the manufacturing milestones, nor will Dara be responsible for any indirect or consequential damages or any other loss of the Client, such as loss of revenue, loss of profit, contract loss, loss of use and loss of production caused by the Equipment. The maximum limit of liability or obligation to compensate for damages to the Client or a third party will not exceed ten per cent (10%) of the price of the order that originated the liability or obligation to compensate, and as long as Dara was notified of the act or event originating the damage or obligation to compensate within the guarantee period of the Equipment or Machinery.
- 6.8.2 Dara will not be liable for the following activities and/or work carried out on the Machinery and Equipment: (i) For damage originating in the feeding of the formats (vials, syringes, bottles, etc.) in Dara's filling and closing, (ii) For damages in electronic components, or by the electricity supply to the machine's wiring frame, (iii) Force majeure events, or (iv) in case of any of the events specified in point 6.7.4 taking place.

6.9 INTELLECTUAL AND INDUSTRIAL PROPERTY

- 6.9.1 Dara retains its intellectual and industrial property rights regarding the design or manufacturing of all Machinery and Equipment. Those existing before manufacturing the Equipment, and those developed, discovered, or created in the design or manufacturing process, including those developed jointly or using materials supplied by the Client. No sale will be understood as transmission of intellectual and industrial property of any kind by Dara.
- 6.9.2 Along with the sale of the Machinery and Equipment, from the moment of its full payment and during its possession by the Client Dara will grant the Client a license to use the Equipment -including any software incorporated into it -. This license cannot be sub-licensed, and it is non-transferable. The software is assigned and not transmitted, with the sole purpose of being used in the operation of the Machinery.
- 6.9.3 The Client may not use the software for any other purpose beyond the scope of the license granted in this CGV. Without limiting the generality of the foregoing, the Client may not: (a) Authorize or permit the use of the Software by unauthorized persons; (b) Commercialize or distribute the Software; (c) Transfer, sub-license, sell, rent or pledge as a guarantee or encumber its rights under the license granted in this document; (d) Modify the Software; (e) Combine or integrate the Software with hardware, software or technology not provided by Dara; (f) Decompile, disassemble, reverse engineer or try to obtain or perceive the source code from which it is compiled or interpret any component of the Software.

6.10 TERMINATION AND/OR SUSPENSION

- 6.10.1 In any case in which an order of Machinery and/or Equipment is intended to be cancelled unilaterally and without a cause, at the initiative of the Client, Dara reserves the right to apply and assign any amount received by Dara until that date as a compensation for early cancellation, and as long as said payments cover the value of the costs incurred up to that date, as well as lost profits. If this is not the case, the client will be obliged to pay the outstanding amount to cover the costs incurred and loss of profit.
- 6.10.2 If production is stopped at the request of the Client, without termination or cancellation, Dara will be entitled to penalize the Client after a grace period of two (2) weeks from the moment of stoppage, with an amount equivalent to zero point five (0.5) per cent of the amount of the Price per week of stoppage until the work is resumed or the Machinery is picked up by the Client in Dara's installations, after approving the corresponding FAT.
- 6.10.3 In case of the Client's non-compliance with payment obligations, Dara may unilaterally terminate and exercise any action tending to terminate the Offer/Order reserving the right to claim for damages.

6.11 FORCE MAJEURE

- 6.11.1 Dara will not be liable for damages, nor will the Client be entitled to rescind or cancel an order due to delay or non-compliance when it has been caused by events beyond the reasonable control of either of the parties, including but not limited to war or insurrection, riots, acts of vandalism, destruction of installations or materials, earthquake, fire, floods or extreme weather, labor unrest, pandemics, epidemics, obtaining of Machinery licenses and export permits, or failure of public services or common carriers ("**Force Majeure Event** "). If any of these were to occur the affected Party must notify the other as soon as possible, after which Dara and the Client will make the maximum effort possible to find a friendly solution. If the Force Majeure Event were to persist for more than six (6) months from its start, either Party will be entitled to cancel the order or production in progress. In which case, the termination effects specified in the previous section will be applicable.
- 6.11.2 Dara shall comply with its obligations arising from the execution of this Offer, and any other obligations set forth in a contract and/or related document, except when the Client is located, for tax and/or effective purposes, in a country to which an embargo and/or economic sanction has been imposed for any reason, within the framework of action by the United Nations, the European Union, OFAC and/or the OSCE, or if there are any restrictions and/or limitations of Exports/Imports for any reason beyond Dara's control.

6.12 CONFIDENTIALITY

- 6.12.1 In any Offer, order, or Contract regarding a trade relationship, either consummated or not, between Dara and/or the Client, "**Confidential Information** " will be understood as the technical specifications, intellectual and industrial property rights of the Parties, as well as all information, in any format or support, exchanged between the Parties in writing, orally and/or visually, within the framework of a commercial relationship. Such as, but not limited to, the Equipment prototype, documents, programs, trials, evaluations, samples, formulas, specifications, source codes, data, databases, trade secrets, present and future research, algorithms, business information and/or information about the activities of the Parties, trade information, data on business plans, strategies, employees, product, services, marketing strategies and/or future business plans and/or clients, including lists of clients, accounts, costs, sales and any other information related to the business of each of the Parties.
- 6.12.2 The Parties acknowledge and accept that any communication received by either of them before the date of acceptance of an Offer or signing of a Contract or order related to it will be understood as having been received under the obligation of confidentiality from the moment of reception and according to the terms and conditions of this Contract.
- 6.12.3 The Party receiving Confidential Information is obliged to (a) Not disclose the Confidential Information to any third party or permit its disclosure; (b) To limit access to the Confidential Information to people who, under the obligation of confidentiality, need to access it for purposes related to the execution of the Services; and (c) Not to use the Confidential Information received other than for the purposes established in this Contract.
- 6.12.4 The obligations of confidentiality described above will not apply to the following: (a) Information that is currently or will be in the public domain without the intervention of the receiving Party; (b) Information that the receiving Party can prove, by documentation, that was already known before being supplied by the disclosing Party; (c) Information received from a third party not subject an obligation of confidentiality with regard to the disclosing Party; (d) Information developed by the receiving Party independently from the confidential information received from the disclosing Party; and (e) Information whose disclosure is required by law or court order. In this latter case, the disclosing Party must be previously notified about the request for disclosure, so it can implement any action deemed necessary to impede or limit said disclosure
- 6.12.5 The confidentiality obligations described above will remain in force even after the termination of the commercial relationship, that is to say, with the delivery of the Machinery and Equipment and for an additional period of five (5) years.

6.13 DATA PROTECTION

- 6.13.1 Dara's supply of Equipment or Machinery may involve access to the Client's personal data or that of their employees, collaborators, or agents. In this case, the Client acknowledges that they have been informed of Dara's Privacy Policy, included on the website: www.dara-pharma.com and in particular the following information.
- 6.13.2 Dara's Privacy Policy is subject to the EU Regulations on Personal Data Protection EU 2016/679, being responsible for the data processed by MAQUINARIA INDUSTRIAL DARA S.L., for the sole purpose of carrying out the production work under the Offer accepted by the Client as well as for sending communications related to the supply and manufacturing of Equipment and Machinery. The same obligations will bind all companies under the control of Dara. The rights arising from said regulation may be exercised by writing to the following address: lop@lara-pharma.com. The data processed will only be stored for the legally established periods delimiting the prescription of actions, which are five (5) years for the exercise of actions that do not have an established special period, or four (4) years according to labor and fiscal legislation.
- 6.13.3 In any case, Dara will require the Client to respect the provisions of European Personal Data Protection Regulations EU 2016/679 regarding the non-transference of personal data about Dara and/or their employees, agents, and collaborators they may have access to. To store and process them with the same care as they apply to personal data from their organization and to destroy this data within the indicated period at the request of Dara, providing verifiable evidence of this destruction.

6.14 JURISDICTION AND COMPETENCE

- 6.14.1 These CGV, and the Offers incorporated into it and the Contracts or Agreements that could be signed will be subject to Spanish law. The application of the United Nations Convention on Contracts for the International Sale of Goods, held in Vienna in 1980, is expressly excluded.
- 6.14.2 For the resolution of any disputes that may arise from the application of these CGV, Both Dara and the Client, waiving any other jurisdiction which might otherwise apply, shall be subject to the exclusive jurisdiction of the law courts and commercial courts of the city of Barcelona (Spain). Nevertheless, Dara may initiate any legal proceeding before the competent courts and Tribunals *ratione loci* and *ratione materiae* according to applicable legislation with regard to disputes regarding the Client's non-compliance with payment obligations.

We look forward to receiving your acceptance of this offer and take this opportunity to send you our best regards.

Yours sincerely,

Sales Department

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